

CLIC Case 0010

Country/Court: Germany, Higher Regional Court of Frankfurt am Main

Decision number/date: Case No. 5-3 StE 1/20 - 4 1/20, 2021-11-30

Crime / Issue: Genocide, Crimes Against Humanity, War Crimes

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The accused was convicted in Germany on the grounds of the findings that he committed genocide (§6 paragraph 1 number 2 VStGB), crimes against humanity with fatal consequences (§7 paragraph 1 and paragraph 3 VStGB), and war crimes against persons (§8 paragraph 1 VStGB). It was alleged that as a member of the foreign terrorist organization "Islamic State" (IS) in Fallujah, Iraq, he purchased a Yazidi woman and her five-year-old daughter as slaves, holding them in captivity and subjecting them to severe daily abuse to advance the organization's goal of destroying the Yazidi religious minority. Consequently, after finding that the accused forced the child to be tethered to a window grid in direct, extreme sunlight as punishment, causing her death by heatstroke, the Higher Regional Court of Frankfurt am Main ("the Court") sentenced him to life imprisonment and ordered him to pay compensation to the surviving mother.

In rendering its judgment, the Court evaluated three main legal issues. First, it analysed whether the severe physical and mental suffering inflicted upon the enslaved victims satisfied the material and subjective elements of genocide under domestic international criminal law. Second, it assessed the concurrent qualification of the acts as crimes against humanity and war crimes, focusing on the elements of enslavement, torture, and the negligent causing of death. Lastly, it determined the admissibility and merits of the civil adhesion claim (*“Adhäsionsantrag”*) brought by the surviving mother for non-material damages under applicable foreign civil law.

Regarding the first legal issue, the Court examined the crime of genocide under §6 of the Code of Crimes against International Law (VStGB). It held that the Islamic State engaged in a centrally planned, systematic campaign to entirely destroy the Yazidi religious group as such. The Court found that by inflicting severe physical and psychological trauma on the victims through daily beatings, starvation, and captivity, the defendant acted with the specific intent to further this genocidal ideology, thereby fulfilling both the objective acts and the special intent required for a conviction.

Regarding the second legal issue, the Court evaluated the requirements for crimes against humanity and war crimes under §7 and §8 of the VStGB. It affirmed that the defendant's actions

occurred within the context of a widespread and systematic attack against the Yazidi civilian population and a non-international armed conflict in Iraq and Syria. Furthermore, the Court held that the fatal outcome of the child's tethering met the threshold for specific statutory qualifications regarding a negligent causing of death, meaning the defendant was fully liable for the aggravated consequences of his international law violations.

Lastly, the Court referred to the civil adhesion claim for compensation filed by the surviving victim. Applying Iraqi civil law as the substantive law of the place where the tort occurred, the Court determined that Article 205 paragraph 2 of the Iraqi Civil Code permits the award of monetary compensation to close family relatives for emotional distress caused by a wrongful death. It concluded that the defendant was legally obligated to pay €50,000 in non-material damages to the plaintiff and dismissed the remaining parts of the adhesion request.